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IN THE CIRCUIT COURT, FOURTH
JUDICIAL CIRCUIT, IN AND FOR
DUVAL COUNTY, FLORIDA

CASE NO.: 23-CA-008801

STEFEN WYNN,

Plaintiff,

vs.

CITY OF NEPTUNE BEACH,

Defendant.

_____/

DEFENDANT, CITY OF NEPTUNE BEACH'S MOTION TO DISMISS SECOND AMENDED COMPLAINT

Defendant, CITY OF NEPTUNE BEACH ("the City"), pursuant to Fla. R. Civ. P. 1.140(b)(6), and subject to the Motion to Strike, filed contemporaneously with this Motion, moves the Court to enter an order dismissing Plaintiff's Second Amended Complaint (the Complaint) for failure to state a cause of action. This motion is based on the following grounds:

1. The Second Amended Complaint is filed by a former manager for the City who claims he was the victim of retaliation after making reports to various City employees or individuals affiliated with the City, most of whom reported to Plaintiff.

2. The City, like all cities in Florida, operates under a charter.[1] The Charter outlines the duties of the City's governing body, the City Council. The City Council contains "All powers of the City." *Charter Section 2.05*.

[1] Neptune Beach's City Charter may be found on municode at:
https://library.municode.com/fl/neptune_beach/codes/code_of_ordinances?nodeId=PTICH

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3. Under the Charter, Neptune Beach has a weak mayor form of government, which means that the mayor serves as the head of city government for purposes of service of process, ceremonial matters and execution of important documents. *Charter Section 2.04*. Further, the mayor "shall have no administrative duties other than those necessary to accomplish these duties, unless provided by ordinance." *Id.* 2.04(a). Other than these duties, the mayor serves as one of five councilmembers, all of whom have one vote, each.

4. The administrative affairs of the City are outlined in Chapter 2 of the City's Code of Ordinances. Division 2 of the City code addresses the City Manager function, outlining this position's duties and qualifications.[2] Section 2-81 designates the City Manager as the chief executive officer. ("The city manager shall be the chief executive officer of the city government, shall enforce the laws of the city and require the faithful performances of all administrative duties.")

5. The qualifications for the City Manager position are outlined in Sec. 2-82:

> The city manager shall be appointed by the city council solely on the basis of executive and administrative qualifications with special emphasis on actual experience, education in, or knowledge of, administration and operation of local government management.

Neptune Beach Code of Ordinances, Chapter 2 (Administration), Article III (Officers and Employees), Division 2 (City Manager), Sec. 2-82 (Qualifications).

6. The City Council conducts the City's business at publicly held meetings. The public is invited to attend city council meetings. An agenda of action items is publicized in advance of city council meetings and the public has an opportunity to be heard on city matters. Fla. Stat. Sec.

[2] This section of the Code of ordinance is also contained on municode at: https://library.municode.com/fl/neptune_beach/codes/code_of_ordinances?nodeId=PTIICOOR_CH2AD_ARTIIIOFEM_DIV1GE

286.011(1)(2). Under this structure, the City Manager operates the day to day administrative functions of the City's affairs, supervises and hires and fires its employees and reports to the City Council, which serves as a policy setting legislative body.

7. Plaintiff, Stefen Wynn, was employed by the City as its City Manager from January 6, 2020 through January 17, 2023. *Second Amended Complaint* ¶6.

8. Plaintiff sues the City pursuant to Florida Statute § 112.3187, the Florida Whistleblower Act ("the Whistleblower Act"), and alleges one count of retaliation. The express legislative intent of the Whistleblower Act is, in part, "to prevent agencies . . . from taking retaliatory action against any person who discloses information to an appropriate agency alleging improper use of governmental office, gross waste of funds, or any other abuse or gross neglect of duty on the part of an agency, public officer, or employee." § 112.3187(2).

9. To achieve that purpose, the Whistleblower Act provides protection to certain employees who, among other things, "disclose specific protected information on their own initiative in a written and signed complaint, who are requested to participate in an investigation", or "who refuse to participate in an adverse action prohibited by this section." *See* § 112.3187(7).

10. For disclosures concerning a local government entity, the Whistleblower Act requires that the protected information be disclosed to "a chief executive officer as defined in s. 447.203(9) or other appropriate local official." § 112.3187(6). "Chief executive officer" is defined as ". . . the person, whether elected or appointed, who is responsible to the legislative body of the public employer for the administration of the governmental affairs of the public employer." § 112.3187(9), Fla. Stat.

11. Plaintiff's claim is based upon his alleged disclosure of specific protected information in a written and signed complaint. *See* §112.3187(5), (7). Although Plaintiff attempts

to assert verbal reports, such reports are not protected under the statute. The allegations of the Complaint do not sufficiently allege that Plaintiff claims whistleblower protection because he was "requested to participate in an investigation" or he "refuse[d] to participate in an adverse action prohibited by this section."

12. In paragraph 9, Plaintiff alleges that he made a written (but unsigned) "whistleblower disclosure" which is attached as Exhibit A to the Complaint. Exhibit A is an email string in which a city councilwoman inquires into budget processes and receives responses from the City's Financial Director and Plaintiff. As a matter of law, Exhibit A does not form the basis for a public whistleblower claim under Fla. Stat. § 112.3187. If any irregularities were documented in this email, such irregularities were first sought out by a councilwoman (not plaintiff) and they were ultimately the City Manager's duty to correct in his supervisory role over the finance director. The City Manager is responsible for supervising all city employees, except the City Clerk. Per Sec. 2-84(a),

> The city manager shall appoint competent, qualified officers and employees to the administrative service and shall have the power to dismiss, suspend and discipline, in accordance with the civil service, all officers and employees in the administrative service under the city manager's control. The city manager shall also have the power to authorize a department head or officer to appoint and remove subordinates serving under that department head or officer.

The City's Finance Director is appointed by and reports to the City Manager. Sec. 2-170, City Code. Moreover, any report that would form the basis of a 112.3187 complaint should have been reported to the City Council, which has the ultimate authority for the City's affairs and was the Plaintiff's sole supervising authority.

13. In paragraph 10, Plaintiff claims that he submitted a written and signed complaint to the City regarding suspected fraud in its building and permit department as outlined in Exhibit B, entitled "Inquiries for Fraud and other Errors in the Annual Financial Audit." In this document

Plaintiff, acting in his role as City Manager, merely responds to questions submitted annually by the City auditors who are retained to conduct the City's annual audit. Exhibit B reflects that Plaintiff is unaware of fraud or is taking action pursuant to his managerial duties as city manager to improve financial processes. Section 112.3187(6) (TO WHOM INFORMATION DISCLOSED) requires information to be disclosed to "a chief executive officer as defined in s. 447.203(9) or other appropriate local official." Plaintiff was the chief executive officer for the City who reported to the City council. (*See,* Section 2-81 of the Code of Ordinances for the City, designating the City Manager as the chief executive officer). The City Auditors were not appropriate local officials for reporting information under 112.3187. Because of this, the allegations of paragraph 10 and the contents of Exhibit B are insufficient to state a claim under §112.3187.

14. In paragraph 11, Plaintiff asserts that he made a verbal complaint when he responded to a councilwoman's "inquiry" relating to information disclosed in Exhibit B. For the reasons stated above, this allegation is insufficient to form the basis for a § 112.3187 claim. Further, as City Manager, Plaintiff was required to report 112.3187 claim to the entire council, not a sole councilperson. A single councilperson has no authority. The city council acts as a body, and it takes its official actions in public meetings, in compliance with the sunshine laws. Fla. Stat. §286.011.

15. In paragraph 12, Plaintiff alleges: "The Defendant's Auditors, Purvis Gray, the Defendant's City Council, Lauren Key and the Defendant's CFO were all either chief executive officers or other appropriate local officers, all of whom were in positions to investigate, police, manage, or otherwise remedy the violations or acts reported by Plaintiff." Article III, Division 2, Sec. 2-81, of the City's Code of Ordinances establish as a matter of law that Plaintiff was the chief

executive officer.[3] ("The city manager shall be the chief executive officer of the city government, shall enforce the laws of the city and require the faithful performances of all administrative duties.") Per the City Charter, Section 2.05, "All powers of the city shall be vested in the city council."[4] Plaintiff's claims that the City's Auditors, one councilmember (Key) and the "Defendant's CFO" were "were in positions to investigate, police, manage, or otherwise remedy the violations or acts reported by Plaintiff" fails as a matter of law because Plaintiff was the chief executive officer and the City Council was the proper authority to receive reports from Plaintiff relating to §112.3187.

16. In paragraph 13, Plaintiff alleges that he was questioned by city council members publicly about "certain practices within the [] City." Plaintiff then alleges that this and Exhibit C constitute whistle blower disclosures as verbal complaints. Not so. Exhibit C is an email string relating to policies and charges for public records. The allegations in paragraph 13 and Exhibit C do not form the basis for a §112.3187 report. Exhibit C is a document that merely reflects the city manager communicating about public record requests and policies.

17. In paragraph 14, Plaintiff alleges that he reported overspending by the City's police department to the Chief of Police, the Chief Financial Officer and the City Clerk and that each of these individuals were "either chief executive officers or other appropriate local officers" who were in a position to "investigate, police, manage or otherwise remedy the violations or acts reported by Plaintiff." Per the City's Ordinances, Plaintiff managed two of these individuals (the Chief of Police and the Chief Financial Officer) *and* the police department. Per Sec. 2-96: "The

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[3] This section of the Code of ordinances is contained on municode at: https://library.municode.com/fl/neptune_beach/codes/code_of_ordinances?nodeId=PTIICOOR_CH2AD_ARTIIIOFEM_DIV1GE

[4] Neptune Beach's City Charter may be found on municode at: https://library.municode.com/fl/neptune_beach/codes/code_of_ordinances?nodeId=PTICH

City manager, or any other qualified person as provided by ordinance, shall be the director of public safety, under whose supervision there shall be a police department." Per Sec. 2-111, the director of public safety "shall be the head of the police department and shall be appointed by the city manager, subject to the approval of the city council." The Finance Director is likewise appointed by the city manager and approved by the city council. Sec. 2-170, City Code. The City Clerk was not responsible for overspending in the police department, and she reports to the same supervisor that plaintiff reported to, the city council. *See,* Sec 2-167. Other than the City Clerk, the city manager supervises *all* city employees. Sec. 2-84(a). Paragraph 14, also cites to Exhibit F, however, this document is merely a budget workshop document and does not qualify for a protected whistleblower disclosure under §112.3187(5).

18. In paragraph 15, Plaintiff alleges a "clear violation of the City's procurement policies" in the City's police department. Plaintiff, in his role as the city's "chief executive officer" or city manager was responsible for managing the police department. Thus, these allegations do not suffice for a §112.3187 claim. Further, Plaintiff's allegations relating to the marriage between a councilwoman and a commander in the City's police department do not constitute facts to support a claim under §112.3187. Plaintiff also does not allege that he reported this alleged "conflict of interest" to the proper authority under §112.3187.

19. In paragraph 16, plaintiff alleges only that he learned of overspending in the police department's budget and a procurement policy violation. As asserted above, the duty to correct these deficiencies, if true, belonged to the city manager. These allegations reflect a management issue, not a whistleblower issue.

20. In paragraph 17, Plaintiff reported an issue to the Police Chief. This allegation is deficient because the police chief was not the "chief executive officer" to whom such reports should be made per §112.3187(6).

21. In paragraph 18, Plaintiff alleges that he "stated to the Chief that Commander Key and Councilor Key were committing a crime by abusing and overspending Defendant's police budget." To the extent this describes an alleged disclosure, it, too, is insufficient. Verbal reports cannot be considered in the determination as to whether Plaintiff engaged in a protected activity and Plaintiff supervised the police commander. Further, allegations relating to the City budget fall within the city manager's duties. Under the City Charter, the city council adopts the city budget by ordinance. Section 4.04, City Charter. The City manager is responsible for preparing the budget with the assistance of the Finance Director. Sec. 2-175 (Preparation of budget).

22. In paragraph 19, Plaintiff alleges that he "reported Commander Key's refusal to follow proper budgetary protocols." However, as stated above, Plaintiff was ultimately responsible for supervising the commander and he failed to report the matter to the proper authority under the statute in a written and signed complaint. The allegations in paragraphs 20-25, likewise are insufficient for the same reasons.

23. In paragraphs 26 and 27, Plaintiff alleges that he reported to and discussed with Mayor Elaine Brown "all that had transpired between Councilor Key and Plaintiff." To the extent this is an alleged protected disclosure, it is deficient because Plaintiff does not state (although presumably) he made this report verbally, and because it does not allege disclosure of information of the nature that receives protection under the Whistleblower Act. Further, as a single councilperson, the mayor was not the proper authority to whom a city manager should report such allegations under 112.3187.

24. Paragraph 36 alleges that Plaintiff made written and signed disclosures reporting that money coming into the building department was not matching the general ledger. Exhibit D filed in support of this allegation, establishes only that Plaintiff was fulfilling his city manager duty to report budget items to the City Council. The duty to supervise the finance director and correct the budget remained a city manager duty; accordingly, this allegation does not support Plaintiff's whistleblower claim

25. Plaintiff's Amended Complaint should be dismissed because it fails to comply with the minimal pleading requirements set forth in Rule 1.110 of the Florida Rules of Civil Procedure, particularly Rule 1.110(b), which requires "a short and plain statement of the ultimate facts showing that the pleader is entitled to relief."

CONCLUSION

For the above reasons, the City respectfully requests an order dismissing Plaintiff's claim as a matter of law, with prejudice.

CERTIFICATE OF SERVICE

I CERTIFY that on this 17th day of April, 2024, I electronically filed the foregoing with the Florida Court's E-Filing Portal, which will serve it on the following counsel of record by Electronic mail:

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